

IN THE COUNTY COURT IN AND FOR MANATEE COUNTY, FLORIDA

Case No.: 2022-CC-4105

Colonial Manor MHC Holdings, LLC
Plaintiff,

vs.

Jeanie Grace Dicicco,
Howard Vincent Blackwell,
Palmetto, FL 34221.
Defendants.

**MOTION FOR LEAVE TO AMEND AND
ADD THE AFFIRMATIVE DEFENSE OF WAIVER**

COMES NOW, Jeanie Grace Dicicco, Howard Vincent Blackwell, Ryan Scott Dudley, and Minor John Doe (Defendants), and files this motion for leave to amend their Affirmative Defenses to add waiver as follows:

1. This is an eviction case filed on July 13, 2022.
2. Plaintiff filed its motion to amend its complaint to remove Defendant Iris Williams on July 26, 2022, which was granted by the court on July 28, 2022.
3. The Defendants filed their answer and affirmative defenses on August 16, 2022.
4. Defendants seek leave to amend their affirmative defenses to include Waiver under Fla. Stat. § 680.208(4) which states:

(4) A party who has made a waiver affecting an executory portion of a lease contract may retract the waiver by reasonable notification received by the other party that strict performance will be required of any term waived, **unless the retraction would be unjust in view of a material change of position in reliance on the waiver.** *(Emphasis Added)*

5. Leave to amend should be given freely as justice requires. Further, the amendment privilege has not been abused, the amendment is not futile, and there is no prejudice to any party.

6. In addition to the above, Florida is a fact pleading state where “a short and plain statement of the ultimate facts showing that the pleader is entitled to relief.” See Advanced Fla. Med. Grp., Corp. v. Progressive Am. Ins. Co., 6D23-482 (Fla. App. May 26, 2023), quoting Ranger Constr. Indus., Inc. v. Martin Co. of Daytona, Inc., 881 So.2d 677, 680 (Fla. 5th DCA 2004) (quoting Fla. R. Civ. P. 1.110(b)).

7. The following are plain statements of fact that were included in the Defendants’ original answer and affirmative defenses; that support the affirmative defense of waiver, are as follows:

- a. Diccico and Howard applied to Management for approval. Management was aware that Scott Dudley, the dog and the minor child were part of their family. As other families with minor children and dogs already lived in the park, Diccico and Howard found it reasonable to rely on management’s approval of their application. See Answer ¶ 5.
- b. By accepting the rental agreement between themselves and Williams, and relying on their application approval from the Colonial Manor as to their family being allowed to live at Colonial Manor. See Answer ¶ 7.
- c. Admit to residing at Lot 155, denied as to not having consent. Plaintiff did consent to Diccico and Howard, their family and their dog as residents at the time they moved in. See Answer ¶ 7,8.
- d. Plaintiff waived Rule 6 by accepting Diccico and Howard’s application and by allowing other dogs to live with other families at Colonial Manor. See Answer ¶ 9.
- e. The alleged violations were waived by the Plaintiff at the time Colonial Manor approved Diccico and Howard’s application. See Answer ¶ 13.

- f. Defendants are approved occupants (by Colonial Manor) (including the dog, minor child and fourth¹ person) and a tenant of Iris Williams. See Answer ¶ 38.
- g. Plaintiff's wrongful attempts to evict Defendants are unjustified. See First Affirmative Defense.
- h. By approving Defendants' application, in the presence of their minor child and dog, Plaintiff induced defendants to rent Lot 155 from Iris Williams, knowing that at anytime Plaintiff could rely on the threat of court to wrongfully evict the Defendants on violations of rules that were previously waived by the Plaintiff in order to induce Defendants to enter their lease with Iris Williams. See Second Affirmative Defense.
- i. Plaintiff has illegally attempted to evict the Defendants by allowing other dogs and other children in Colonial Manor, while pursuing the Defendants, which were approved by Colonial Manor, for doing nothing material and nothing different than the other occupants. See Third Affirmative Defense.
- j. It is unconscionable that Plaintiff has fraudulently induced the Defendants by approving their occupancy application (knowing of the dog, minor child and fourth² person, then pursuing possession based on information they had when they approved Defendants' application for occupancy. See Fourth Affirmative Defense.
- k. Fla. Stat 723.061(1)(c)(2) states in part: "A properly promulgated rule or regulation may not be arbitrarily applied and used as a ground for eviction." To the extent Plaintiff's Complaints about the property constitute rules violations, similar conditions exist throughout the park without enforcement from Plaintiff. Plaintiff's attempted enforcement in this case constitutes selective/arbitrary enforcement and should be disallowed. See Sixth Affirmative Defense. See Sixth Affirmative Defense.

8. In addition to the above facts that were originally pled, are the following:

- a. That Jeanie Grace Diccio's mother moved into the Park in or around 2019 with defendant **Ryan Scott who;**
 - i. **is under the age of forty,**

¹ Corrected spelling from original pleading.

² Corrected spelling from original pleading.

ii. is disabled, and

iii. requires adult management and care.

- b. In May of 2021, Jeanie Diccico , Howard Blackwell and their minor child moved into the park to assist Jeanie Diccico's mother with the care of Ryan Scott because Jeanie Diccico' mother's health was declining to the point she was unable to properly provide the care of Scott Dudley.
- c. When Jeanie Diccico, Howard Blackwell and their minor child moved into the park to help care for Ryan Scott, Ryan Scott would spend time with his sister, brother in law, and nephew, at the subject property, but at all times maintained his residence at his mother's home.
- d. Presently Jeanie Diccico is managing and helping her mother care for Ryan Scott, but she is unable to do so all by herself.
- e. If Jeanie Diccico , Howard Blackwell and their minor child are evicted from the park, the care of Ryan Scott will be greatly compromised, whether or not Scott Ryan is evicted.
- f. It is unjust, unconscionable, and cruel for the Plaintiff to retract its waiver.

9. The above short and plain statement of the ultimate facts show the Plaintiff's retraction of its waiver would be unjust, unconscionable, and cruel in view of the Defendants' position and time they have invested in reliance to the Plaintiff's waivers.

Dated this 10th day of October 2023.

/s/ Christopher Mat Hittel
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CERTIFICATE OF SERVICE

I hereby certify that a true copy was electronically filed with the Manatee County Clerk of Court using the Florida Courts E-Filing Portal and served to on October 10, 2023.

/s/Christopher M. Hittel
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